

COMMITTEE ON JUDICIARY AND ELECTIONS
SENATE AMENDMENTS TO H.B. 2589
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 13, chapter 35, Arizona Revised Statutes, is
3 amended by adding section 13-3508, to read:

4 13-3508. Unlawful exposure to adult oriented performances;
5 classification; definition

6 A. A PERSON COMMITS UNLAWFUL EXPOSURE TO AN ADULT ORIENTED
7 PERFORMANCE BY INTENTIONALLY DOING ANY OF THE FOLLOWING [IN OR ON A PUBLIC
8 PROPERTY]:

9 1. ALLOWING A MINOR UNDER THE PERSON'S CUSTODY OR CONTROL TO VIEW
10 AN ADULT ORIENTED PERFORMANCE.

11 2. ALLOWING A MINOR TO ENTER OR REMAIN IN A BUILDING OR PART OF A
12 BUILDING WHERE AN ADULT ORIENTED PERFORMANCE IS OCCURRING.

13 3. PERFORMING OR ALLOWING ANOTHER PERSON UNDER THE PERSON'S CUSTODY
14 OR CONTROL TO PERFORM AN ADULT ORIENTED PERFORMANCE IN VIEW OF A MINOR.

15 B. UNLAWFUL EXPOSURE TO AN ADULT ORIENTED PERFORMANCE IS A CLASS 4
16 FELONY.

17 C. FOR THE PURPOSES OF THIS SECTION[.] [;

18 ~~1.~~] "ADULT ORIENTED PERFORMANCE" MEANS AN IN-PERSON SHOW OR
19 PERFORMANCE THAT [BOTH]:

20 [~~(a)~~] [1.] TAKEN AS A WHOLE APPEALS TO A PRURIENT INTEREST IN
21 SEX[.] [~~;~~ AND

Senate Amendments to H.B. 2589

1 ~~(b)~~ [2.] DEPICTS OR SIMULATES SPECIFIC SEXUAL ACTIVITIES OR THE
2 LEWD EXPOSURE OF SPECIFIC ANATOMICAL AREAS.

3 Enroll and engross to conform

4 Amend title to conform

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